

U.P. Avas Evam Vikas Parishad (Remuneration to The Presiding Officer of The Tribunal and Execution of Awards and Order of The Tribunal) Rules, 1967

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State of Uttar Pradesh - Act

U.P. Avas Evam Vikas Parishad (Remuneration to The Presiding Officer of The Tribunal and Execution of Awards and Order of The Tribunal) Rules, 1967

UTTAR PRADESH

India

U.P. Avas Evam Vikas Parishad (Remuneration to The Presiding Officer of The Tribunal and Execution of Awards and Order of The Tribunal) Rules, 1967

Rule

U-P-AVAS-EVAM-VIKAS-PARISHAD-REMUNERATION-TO-THE-PRESIDING-OFFICER-OF-THE-TRIBUNAL-AND-EXECUTION-OF-AWARDS-AND-ORDER-OF-THE-TRIBUNAL-RULES-1967 of 1967

Published on 1 January 1967

Commenced on 1 January 1967

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U.P. Avas Evam Vikas Parishad (Remuneration to The Presiding Officer of The Tribunal and Execution of Awards and Order of The Tribunal) Rules, 1967

Published vide Notification No. 0-359-H/XXXVII-27-(HB)-65, dated December 21, 1967, published in U.P. Gazette,

Part I-Ka, dated 30th Dec, 1967, p. 3127

059.

In exercise of the powers under clause (ff) and (gg) of sub-section (2) of section 94 of the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act No. I of 1966), the Governor is pleased to make the following rules regarding remuneration to the Presiding Officer of the Tribunal and execution of awards and orders of the Tribunal:

1.

Short title and commencement.

(1)

These rules may be called the U.P. Avas Evam Vikas Parishad (Remuneration to the Presiding Officer of the Tribunal and Execution of Awards and Order of the Tribunal) Rules, 1967.

(2)

They shall come into force with effect from the date of their publication in the Uttar Pradesh Gazette.

2.

Definition.

- In these rules unless there is anything repugnant to the subject or context, -

"Act" means the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act No.I of 1966).

3.

Remuneration to the Presiding Officer of the Tribunal.

- The Judicial Officer appointed as Tribunal under section 64 of the Act shall be paid an honorarium of Rs. 150 (Rupees one hundred and fifty) per mensem out of the funds of the Board.

4.

Conditions of Service of other Officers and Servants of the Tribunal.

(1)

The Judicial Officer appointed as Tribunal may utilize the services of any of the officers or servants working under him with the consent of that officer or servant and the permission of the appropriate authorities. Such officer or servant shall be paid such honorarium out of the funds of the Board as may be determined by Government in Housing Department in each case.

(2)

The officers and servants appointed on a whole time basis shall be paid such pay and allowances out of the funds of the Board as may be admissible to officers and servants of the same class appointed by the Board. The regulations regarding conditions of service of officers and servants of the Board shall mutatis mutandis apply to the officers and servants appointed by the Tribunal on whole time basis.

5.

Execution of award or order of the Tribunal.

- Every award or order made by the Tribunal shall be enforced by the District Court in the jurisdiction of which the land or building concerned in the proceeding before the Tribunal is situate as if it was the decree of the said court.

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